

Book	Administrative Guideline Manual
Section	Technical Corrections July 2023
Title	Copy of NONDISCRIMINATION AND ACCESS TO EQUAL EDUCATIONAL OPPORTUNITY
Code	ag2260
Status	Up for Revision
Adopted	July 1, 2008

2260 - **NONDISCRIMINATION AND ACCESS TO EQUAL EDUCATIONAL OPPORTUNITY**

These guidelines shall be used to ensure that the Board of Education's policy on nondiscrimination (Policy 2260) is implemented properly and in compliance with Federal and State laws and regulations, particularly Part 104 of Section 504 of the Rehabilitation Act of 1973 (34 C.F.R.). A copy of Part 104 is provided as AG 2260A.

That policy states:

The Board of Education does not discriminate on the basis of religion, race, color, national origin, sex, disability, military status, ancestry, or age in its programs, activities, or employment.

The following person(s) have been designated to handle inquiries regarding the non-discrimination policies of the District or to address any complaint of discrimination:

Director of Pupil Services

Cassandra Spangler

6380638 Mill Rd

Broadview Heights Brecksville, OH 44147-1

440-740-470917

Notice of the Board's policy on nondiscrimination in educational practices shall be posted throughout the District, published in any District statement regarding the availability of educational services, and in all student handbooks.

Children who have been diagnosed as having a disability and who, through a multi-factored evaluation, qualify for categorical services under IDEA will be served under the existing State Special Education regulations. Section 504 protects and safeguards all students with a mental or physical impairment which is defined as substantially limiting one (1) or more major life activities, or:

- A. the student has a record of such an impairment.
- B. the student is regarded as having such an impairment.

The District will identify, evaluate, and provide an appropriate education for students who are disabled under Section 504.

FACILITIES

The educational program of this District shall be accessible to all students. All programs need to be designed and scheduled so the location or nature of the facility or area will not deny an otherwise-qualified disabled student the opportunity to participate in the academic or other school program on the same basis as a nondisabled student. (See Form 2260 F7- Accessibility Checklist.)

Guide dogs for students who require this type of assistance shall be permitted access to all facilities, programs, and events of the District. The student must provide evidence of the dog's certification for that purpose. If the dog is still in training, proof of liability insurance policy must be provided.

PROGRAM

The educational program includes the academic and nonacademic setting. Each qualified, disabled student shall be educated with the nondisabled student to the maximum extent appropriate. In the nonacademic setting, the disabled student shall participate with the nondisabled students to the maximum extent appropriate to the needs of the disabled student.

Each principal shall ensure that the procedures used with students and parents for selection of and participation in any part of the District's academic, co-curricular, or extra-curricular program do not discriminate on the basis of race, color, national origin, gender, age, or disability. (See AG 2411 - Guidance and Counseling).

Referral (see Form 2260 F4)

If the referring person and the school psychologist have reason to believe that the student needs special accommodations or related services in order to be provided access to the District's programs, the school psychologist shall notify the parent. If the referring person and the school psychologist suspect that the student is eligible for services through IDEA, the procedures for identification, evaluation, and placement must be followed. If the IDEA evaluation team determines the child is ineligible under IDEA, the team may determine the student's eligibility, if any, for special accommodations or related services under Section 504. If s/he is eligible, a student accommodation plan shall be developed.

If the referring person does not suspect an IDEA disability or has knowledge that the student does not qualify under IDEA, the student shall be evaluated in accordance with the Section 504 evaluation procedures (AG 2260A).

Evaluation/Placement

Prior to evaluation, the school psychologist shall notify the parent and obtain written consent of the parent.

At the time of notification of the parent to obtain consent for the evaluation, the school psychologist shall provide the parent an explanation of the rights of the parent and the student under 504 (see Form 2260 F1).

The Section 504 evaluation is to be tailored to the suspected or known disability and how that disability impacts on the student's ability to function in the school setting. A full multi-factored evaluation may not be required, but the evaluation shall draw upon information from a variety of sources including those who have detailed knowledge about the student and his/her condition. Each person providing evaluative information shall assure that the information is documented.

The guidance counselor shall schedule a meeting of the group of persons knowledgeable about the student which shall review the evaluation data and determine if the student is disabled within the meaning of Section 504 (see page 1).

The parents will be notified of the meeting and be invited to attend the meeting.

If the team determines that the student is disabled under 504, it will determine what reasonable accommodation or related services the student may need and develop a 504 student-accommodation plan (see Form 2260 F3).

Parents are to be invited to participate in the development of the plan.

If the 504 team determines that the student is not disabled under 504, it shall document the decision, provide the basis of the decision, and state that the student may be served appropriately in the regular education setting without related services or special interventions. Following the 504 team meeting, the parent is to be notified of the team's decision.

The school psychologist is to ensure that the evaluation and placement process be completed in a reasonably timely manner and in compliance with the procedural safeguards described in Form 2260 F6 - Section 504 Procedural Safeguards. It is essential that the parents be provided a copy of their rights under Section 504 as described in Form 2260 F1.

INSTRUCTION

Because of the least-restrictive, environment requirements, the principal should review all of AG 2260A and then work with the teacher(s) involved to make sure s/he (each):

- A. recognizes the requirements of the law and the relationship between the evaluation of the student and his/her instruction;
- B. has made appropriate accommodation in the instructional program and/or classroom environment as provided in the student's 504 accommodation plan. Such accommodations could include but not be limited to:

1. preparation of alternate lesson plans;
2. modification of schedules;
3. rearrangement of the students;
4. reorganization of the classroom;
5. guidance of the student on appropriate behaviors;
6. frequency and type of communication with parents;
7. alternate methods of instruction;
8. alternate methods of assessment;
9. alternate grading;

C. understands the needs of the students which should be met through appropriate instruction.

Evaluation/Change in Placement

Within one (1) school year following implementation of a student accommodation plan, the student's 504 team is to review the student's progress and determine if further intervention or a modification in the plan is needed.

DISCIPLINE

The disciplinary process described in Policy 5605 should be used in all situations in which a 504-disabled student may be subject to suspension, expulsion, or exclusion. Since expulsion or cumulative forms of suspension may constitute a change in placement, the evaluation procedures in AG 2260A must be followed.

DRUG-RELATED CIRCUMSTANCES

If a student, disabled only under Section 504, is caught with drugs at school, s/he may be disciplined in accordance with AG 5610. The disciplinary procedures required for IDEA students do not apply.

COMPLAINTS

All complaints should be handled in accordance with the procedure described in AG 2260B. Section 504 does not establish timelines for submission of a hearing request nor does it define "impartial hearing" or require that the selection of the hearing officer be mutually agreed-upon by the District and the parents. The impartial hearing officer should be someone who is not employed by or under contract to this District in any capacity. The complainant is to be informed that s/he may contact the Office of Civil Rights at any time. (See Step 4 of the complaint procedures - AG 2260B.)